



CHAPTER clxxiii.

An Act to empower the Corporation of Blackpool to widen Lytham Road to construct additional tramways to extend their powers in regard to the supply of sea water to make further provision in regard to their loans and for other purposes. [4th August 1905.] A.D. 1905.

WHEREAS by the County Borough of Blackpool Order 1904 (confirmed by the Local Government Board's Provisional Orders Confirmation (No. 13) Act 1904) the borough of Blackpool was constituted a county borough and all the provisions of the Local Government Act 1888 respecting county boroughs were made applicable to the borough as if the borough had been named in the Third Schedule to that Act and as if Lancaster had been specified in that schedule as the county in which the borough should be deemed for the purposes of that Act to be situate :

And whereas the Acts and Orders specified in the First Schedule to this Act (save so far as any of them are amended by any later Act or Order amending the same) are in force in the borough which Acts and Orders are in this Act referred to collectively as the recited Acts and Orders and each of them separately as an Act or Order of the year in which the same was passed or made :

And whereas it would be of public and local advantage if Lytham Road in the borough were widened straightened and improved as by this Act provided :

And whereas the Corporation have in accordance with the recited Acts and Orders constructed various tramways in the borough and it is expedient that they should be empowered to construct the additional tramways herein-after described :

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And whereas the Corporation are now under statutory powers in that behalf working the greater part of their tramways and it is expedient that those powers should be extended to the tramways by this Act authorised :

And whereas in order to complete the promenade or parade Work No. 5 authorised by the Act of 1899 it will be necessary to take or interfere with a certain sea-water well on the foreshore and to take or interfere with the apparatus and pipes in connexion therewith and it is expedient that provision should be made as in this Act mentioned in regard thereto :

And whereas by the Act of 1873 the Blackpool Sea Water Company were empowered to construct a pumping station and other sea-water works and to supply sea water within the limits therein described including the greater part of the borough :

And whereas the Corporation have with the sanction of the Local Government Board and in accordance with the provisions of the Public Health Act 1875 purchased the lands pumping station buildings and plant and (with certain exceptions) all the rights powers privileges waterworks and other property of the Blackpool Sea Water Company and the Corporation have since the said purchase in the year one thousand nine hundred and two carried on the undertaking and supplied sea water within so much of the borough as is within the limits of the said company :

And whereas it is expedient to extend the limits of supply and in other respects to amend the provisions of the Act of 1873 and to confer upon the Corporation the other powers mentioned in this Act :

And whereas it is expedient that the Corporation should be empowered to borrow further moneys and that better provision should be made as in this Act mentioned in regard to the loans of the Corporation the securities upon which they are charged the discharge of borrowed moneys and other financial matters:

And whereas it is expedient to make such other provisions as this Act contains :

And whereas the purposes aforesaid cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purchase of lands for and execution of the Lytham Road Improvement by this Act authorised and such estimates amount to the sum of thirteen thousand pounds :

And whereas the works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years : A.D. 1905.

And whereas an absolute majority of the whole number of the council at a meeting held on the thirtieth day of November one thousand nine hundred and four after ten clear days notice by public advertisement of such meeting and of the purpose thereof in the *Blackpool Herald* and *Fylde Advertiser* a local newspaper published and circulating in the borough such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the borough fund and borough rate :

And whereas such resolution was published twice in the *Gazette News* for *Blackpool Fleetwood Lytham St. Anne's* and *Fylde* district a local newspaper published and circulating in the borough and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the third day of January one thousand nine hundred and five being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule of the *Borough Funds Act 1903* have been observed :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county palatine of Lancaster and are herein-after respectively referred to as the deposited plans sections and books of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

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PART I.

PRELIMINARY.

Short title. 1. This Act may be cited as the Blackpool Improvement Act 1905.

Division of Act into Parts. 2. This Act is divided into Parts as follows :—
Part I.—Preliminary.

Part II.—Lytham Road Improvement.

Part III.—Tramways.

Part IV.—Lands and General Provisions.

Part V.—Sea Water.

Part VI.—Financial and Miscellaneous Provisions.

Incorporation of Acts. 3. The following Acts and parts of Acts so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act are hereby incorporated with this Act namely :—

The Lands Clauses Acts :

Sections 3 (Interpretation of terms) and 19 (Local authority may lease or take tolls) and Parts II. and III. of the Tramways Act 1870 Provided that section 19 shall be read and have effect as if the words “ but nothing in this “ Act contained shall authorise any local authority to place “ and run carriages upon such tramways and to demand “ and take tolls and charges in respect of the use of such “ carriages ” were omitted from that section.

Interpretation. 4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

“ The Corporation ” means the mayor aldermen and burgesses of the borough of Blackpool ;

“ The borough ” means the borough of Blackpool ;

“ The council ” means the council of the borough ;

“ The town clerk ” means the town clerk of the borough ;

“ The treasurer ” means the treasurer of the borough ;

“The borough fund” “the borough rate” “the district fund” and “the general district rate” mean respectively the borough fund and borough rate the district fund and general district rate of the borough ;

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“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under this Act or under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed ;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond stock debenture debenture stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges and securities payable to bearer or any securities of the Corporation ;

“The revenues of the Corporation” includes the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and also rates leviable by or on the order or precept of the Corporation ;

“Principal moneys” means any moneys borrowed or to be borrowed by the Corporation under any statutory borrowing power including the borrowing powers under this Act and not raised by the issue of Corporation stock or debenture stock :

Provided that in regard to the incorporated enactments the expressions “undertakers” “promoters of the undertaking” and “the company” mean the Corporation.

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PART II.

LYTHAM ROAD IMPROVEMENT.

Power to
make street
improve-
ment.

5. Subject to the provisions of this Act the Corporation may make and maintain in the lines and according to the levels shown on the deposited plans and sections the following street widening and improvement (in this Act called "the Lytham Road Improvement") with all proper approaches embankments bridges arches girders retaining walls works and conveniences connected therewith or incident thereto (that is to say):—

A widening straightening and improvement of a portion of Lytham Road in the borough commencing in Lytham Road at a point six yards southward measured along the centre of that road from opposite the southern end of the booking office of the South Shore passenger railway station and terminating in Lytham Road at a point one hundred and fifty-seven yards or thereabouts measured in a southerly direction from the point of commencement of the work And the Corporation may in connexion with the foregoing work remove the existing bridge carrying Lytham Road over the Preston and Wyre Railway belonging to the Lancashire and Yorkshire and London and North Western Railway Companies and may construct a new bridge for carrying the widened straightened and improved road over the said railway.

Limits of
deviation.

6. In the construction of the Lytham Road Improvement the Corporation may deviate from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of lateral deviation shown on those plans and from the levels thereof as shown on the deposited sections to any extent not exceeding five feet either upwards or downwards.

Subsidiary
works.

7. Subject to the provisions of this Act and within the limits of deviation shown on the deposited plans the Corporation may in connexion with the Lytham Road Improvement and for the purposes thereof make junctions and communications with any existing streets which may be intersected or interfered with by or be contiguous to such work and may make diversions widenings or alterations of the lines or levels of any existing streets for the purpose of connecting the same with such work or of crossing under or over the same or otherwise and may alter divert or stop up all or any part of any drain sewer channel or gas or water

main or pipe wire or apparatus within the said limits the Corporation providing a proper substitute before interrupting the flow of sewage in any drain or sewer or of gas or water in any main or pipe or of electricity in any wire or apparatus and making compensation for any damage done by them in the execution of the powers of this section. A.D. 1905.

8. The Corporation may during the execution and for the purposes of the Lytham Road Improvement from time to time stop up any street and prevent all persons other than those bonâ fide going to or returning from any house in the street from passing along and using the same for any reasonable time but convenient access to the houses in such street shall be provided by the Corporation. Temporary stoppage of streets.

9.—(1) When the new railway bridge forming part of the Lytham Road Improvement shall have been completed the same shall vest in and become the property of the Corporation but shall at all times be maintained and kept in substantial repair and good order (to the reasonable satisfaction in all respects of the engineer of the Corporation) by the Lancashire and Yorkshire and London and North Western Railway Companies as the owners of the Preston and Wyre Railway and the Corporation shall pay to the said companies half-yearly a sum equal to one-half of the expense incurred by the said companies in the maintenance and repair of the said bridge. If and whenever the two companies fail to maintain and keep the said bridge in substantial repair and good order as aforesaid the Corporation may make and do in and upon as well the lands of the two companies as the lands of the Corporation all such works repairs and things as the Corporation may reasonably think necessary in that behalf and one-half of the reasonable amount of such expenditure shall be paid to the Corporation by the two companies. For the purpose of this subsection the terms "the new railway bridge" and "the said bridge" shall not include the surface of the widened road thereon or of the approaches thereto. Railway bridge to vest in Corporation and provision as to maintenance and amendment of s. 10 of Order of 1893.

(2) The widened road over the said bridge and the approaches thereto shall be maintained and repaired by the Corporation at their own expense.

(3) Any difference which may arise under the provisions of this section shall be determined by an arbitrator to be agreed upon between the parties or failing agreement to be appointed

A.D. 1905. by the President of the Institution of Civil Engineers upon the application of either party.

(4) Section 10 (For the protection of the Lancashire and Yorkshire and London and North Western Railway Companies) of the Order of 1893 shall with the necessary modifications apply to and with respect to Tramway No. 1 and Tramway No. 2 by this Act authorised.

For protection of Lancashire and Yorkshire and London and North Western Railway Companies.

10. For the protection of the Lancashire and Yorkshire and London and North Western Railway Companies (in this section called "the two companies") the following provisions shall unless otherwise agreed between the Corporation and the two companies apply and have effect (that is to say) :—

(1) Notwithstanding anything shown upon the deposited plans and sections relating to the Lytham Road Improvement by this Act authorised the alteration of the levels of the northerly approach to the bridge carrying the Lytham Road over the railway of the two companies shall not be carried further to the north than a point fixed by a gradient of one in twenty commencing as near the centre of the bridge as is consistent with the adoption of a reasonable form of construction for the bridge and the Corporation shall construct the new bridge over the said railway with a span measured on the square and with a clear headway throughout from the upper surface of the rails to the under side of the bridge not less than the span and headway respectively of the existing bridge :

(2) In carrying out the Lytham Road Improvement the Corporation shall remove the existing bridge and construct the new bridge in a manner and according to plans sections and specifications and of a quality and strength of material to be previously submitted to and approved in writing by the engineer of the two companies which approval shall not be unreasonably withheld and the Corporation shall not commence the removal of the existing bridge or the construction of the new bridge or enter upon or interfere with any lands works or property belonging to or used by the two companies until the manner in which it is proposed to remove the existing bridge and such plans sections

and specifications have been so submitted and approved
 Provided always that if the said engineer shall for the
 period of one month refuse or neglect to approve or
 shall disapprove the same and in case the said engineer
 and the engineer of the Corporation fail to agree or
 if any difference arise between them the existing
 bridge shall be removed and the new bridge shall be
 constructed in a manner and according to plans sections
 and specifications to be submitted to and approved by
 an engineer to be mutually appointed by the Corpo-
 ration and the two companies or failing agreement
 to be appointed by the President of the Institution
 of Civil Engineers on the application of the Corporation
 or the two companies :

- (3) The Lytham Road Improvement and all works necessary
 or incident to the carrying out thereof shall be
 executed by and in all things at the expense of the
 Corporation and under the superintendence and to
 the reasonable satisfaction of the engineer of the two
 companies :
- (4) The Corporation shall take all reasonably possible precau-
 tions in the execution of their works to prevent any
 interference with the free and uninterrupted and safe
 use in the ordinary manner and at the ordinary rate
 of speed of any railway or siding or other work
 belonging to the two companies :
- (5) During the carrying out of the Lytham Road Improve-
 ment the Corporation shall on demand pay to the two
 companies all reasonable expense of employment by
 the two companies of a sufficient number of inspectors
 watchmen and flagmen to be appointed by the two
 companies for watching their railway property and
 works with reference to and during the carrying out
 of the said improvement and for preventing as far
 as may be all interference obstruction danger and
 accident which may arise from any of the operations
 or from the acts or defaults of the Corporation or their
 contractors or any person or persons in the employ-
 ment of the Corporation or their contractors with
 reference thereto or otherwise The two companies
 shall render to the Corporation monthly an account
 in detail of the cost of their employment of such

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inspectors watchmen and flagmen during the preceding month :

- (6) If by reason of the execution or failure of any of the works of the Corporation or any act or omission of the Corporation or of their contractors or of any person in the employment of the Corporation or of their contractors any railway siding or other work belonging or leased to or worked by the two companies shall be injured or damaged such injury or damage shall be forthwith made good by the Corporation at their own expense or in the event of their failing so to do then the two companies may make good the same and the reasonable expenses thereof shall be repaid to the two companies by the Corporation on demand and the Corporation shall indemnify the two companies against all losses which the two companies may sustain and shall pay all costs charges and expenses which the two companies may be put to or incur by reason of the execution or failure of any of the works of the Corporation or any act or omission of the Corporation or their contractors or any person in the employment of the Corporation or their contractors :
- (7) If at any time hereafter the two companies shall be desirous of extending widening or altering their railways the Corporation shall give to the two companies all proper and reasonable facilities for making an opening or openings under the southerly approach to the new bridge and shall not dispute the right of the two companies to drain the widened railway into the main sewer which passes under the railway near the said bridge The costs and expenses incurred by the two companies in making such opening or openings and any costs or expenses which may be incurred by the Corporation by reason of the execution or failure of such works shall be borne and paid by the two companies :
- (8) Notwithstanding anything in this Act contained the Corporation shall at all times during the carrying out of the Lytham Road Improvement leave convenient access for both vehicular and pedestrian traffic from both sides of the railway of the two companies to the road leading from the foot of the southerly approach

to the bridge to their South Shore Station goods yard and the two companies shall from time to time afford the Corporation all reasonable facilities for constructing and maintaining during the carrying out of the Lytham Road Improvement all necessary and proper temporary works :

- (9) The Corporation shall not purchase or acquire any land or property of the two companies except such as is coloured red on the plan signed by the Right Honourable William Hillier Onslow Earl of Onslow Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred nor any easements therein or thereover for the bridge or retaining walls except such as is coloured blue on the said plan :
- (10) The two companies shall sell and convey to the Corporation at the price of three hundred pounds and the Corporation shall purchase at such price for the Lytham Road Improvement all the estate and interest of the two companies in the said land and property coloured red on the said plan and the two companies shall also so far as their estate and interest extend grant to the Corporation all easements necessary for the purposes of the Lytham Road Improvement in upon and over the said land coloured blue on the same plan :
- (11) The Corporation shall pay to the two companies the cost of extending the down platform at South Shore Station at its northerly end to compensate for the curtailment at its southerly end which will be caused by the construction of the said bridge and approaches such extension not to be greater in length than the portion of platform abandoned at such southerly end :
- (12) The two companies shall have the option (which may be exercised at any time within two years from the passing of this Act) of purchasing from the Corporation all or so much of the properties numbered on the deposited plans 9 to 24 (inclusive) as the Corporation may acquire and which the two companies may require for extending widening or altering their railways or works at the price (including therein all costs

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charges and expenses) paid by the Corporation for the property so to be purchased by the two companies Provided that if the two companies shall require to take any part of any house or other building or manufactory within the operation of section 92 of the Lands Clauses Consolidation Act 1845 they shall if so required by the Corporation purchase the whole of such house or other building or manufactory :

- (13) The two companies shall at all times be entitled to build up to the line of the footway on the easterly side of Lytham Road when widened and improved for the entire length of their present frontage thereto and also to make openings through the parapet walls of the said bridge or approaches co-extensive with their present frontage in order to obtain access to or from the road making good any damage caused thereby Provided always that the two companies shall not use the roadway over the widened bridge or the approaches thereto for the standing of cabs luggage carts or other vehicles so as to cause any unnecessary interference with the street traffic :
- (14) The two companies shall not nor shall any person by their authority or permission use the bridge for carrying Lytham Road over the railway or any parapet in connexion with such bridge or any wall or fence of or in connexion with the approaches to such bridge or any part thereof respectively for the posting affixing or exhibiting of any placards or advertisements other than placards or advertisements relating solely to the business of a railway company :
- (15) If any difference shall arise between the Corporation and the two companies or their respective engineers touching this section or anything to be done or not to be done thereunder or the reasonableness or necessity thereof or as to any money to be paid thereunder such difference shall be referred to and be determined by an engineer to be mutually appointed by the Corporation and the two companies or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of the Corporation or the two companies.

PART III.

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TRAMWAYS.

11. Subject to the provisions of this Act the Corporation may make form lay down work use and maintain the tramways (all within the borough) herein-after described in the lines and according to the levels shown on the deposited plans and sections and in all respects in accordance with those plans and sections with all proper rails plates sleepers channels passages and tubes for ropes cables wires and electric lines junctions turntables turnouts crossings passing-places posts conduits boxes manholes stables carriage-houses engine and boiler houses sheds buildings engines dynamos batteries transforming stations works and conveniences connected therewith respectively.

Power to
make tram-
ways.

The tramways in this section referred to and authorised by this Act are—

Tramway No. 1 A double line 1 furlong 2·44 chains in length or thereabouts commencing in Lytham Road by a junction with the existing tramway thence proceeding in a southerly direction along Lytham Road (when widened as provided by this Act) and terminating therein :

Tramway No. 2 A double line 2 chains in length or thereabouts commencing in Lytham Road by a junction with Tramway No. 1 and terminating in Station Road by a junction with the existing tramway :

Tramway No. 3 A double line 2 furlongs 0·48 chain in length or thereabouts commencing in New Road by a junction with and at the termination of the existing tramway and terminating in New Road.

12. The tramways authorised by this Act shall be constructed on a gauge of four feet eight and a half inches.

Gauge of
tramways.

13. The tramways and works authorised by the foregoing provisions of this Part of this Act shall for all purposes form part of the tramway undertaking of the Corporation and the provisions of Part II. (Tramways and Tramroads) of the Act of 1901 and of the enactments incorporated with that Act and any byelaws and regulations made in pursuance thereof and for the time being in force shall with the necessary modifications extend and apply to all the said tramways and works as if they had been authorised by Part II. of the Act of 1901.

Works to
form part of
tramway
undertaking
of Corpora-
tion.

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Period for
completion
of tramways.

14. If the tramways by this Act authorised are not completed within two years from the completion of the Lytham Road Improvement or seven years from the passing of this Act whichever period shall first elapse then at the expiration of that period the powers by this Act granted to the Corporation for making and completing the tramways or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Junctions.

15. The Corporation may form junctions between any tramways for the time being belonging to the Corporation with the consent of the lessees (if any) thereof and between any such tramways and any tramways which can be worked in connexion therewith but only with the consent of the owners and the lessees (if any) thereof.

Working and
other agree-
ments.

16. The Corporation may enter into and fulfil agreements with the owners and lessees (if any) of any tramway existing at the passing of this Act within or beyond the borough which can be worked with any tramway for the time being belonging to the Corporation (each of whom is in this section referred to as "the owning authority") with respect to the following purposes or any of them and all matters incidental or necessary thereto (that is to say):—

- (1) The working running over use management occupation and maintenance by any of the contracting parties of the undertakings and tramways of or leased to the other or others of them or any part or parts thereof respectively :
- (2) The working and leasing of their respective tramways or any part thereof and the conveyance of traffic thereon :
- (3) The supply and maintenance under and during the continuance of any such agreement for the tramways of the contracting parties or any of them being worked and used by the other or others of them of carriages engines and horses necessary for the purposes of such agreement and the employment of officers and servants :
- (4) The supply by the Corporation to any of the other contracting parties of motive power Provided that no electrical energy shall be supplied by the Corporation under this enactment in any district in which any local authority company or person shall be supplying energy

under statutory authority without the consent in writing of such local authority company or person : A.D. 1905.

- (5) The interchange of traffic between the undertakings of or leased to the contracting parties or any of them :
- (6) The payment collection and apportionment of tolls rents fares charges or other receipts arising upon the respective tramways :
- (7) The appointment of joint committees for the carrying into effect of such agreements :

And for the purposes of and during the continuance of any such agreement the Corporation or the owning authority working or running over managing or occupying any tramways shall in accordance with and to the extent provided by such agreement have and may exercise in respect of the tramways worked run over used managed occupied or maintained by them all such and the like powers rights and remedies for the taking collection and recovery of tolls fares and charges and otherwise howsoever as are by or under the Acts respectively relating to such tramways conferred upon the Corporation or the owning authority.

For the purposes of this section a tramway shall include a tramroad and light railway.

17. Tramway No. 1 by this Act authorised shall be in substitution for Tramway No. 8 authorised by the Act of 1901 and shall with Tramway No. 9 authorised by the said Act (and since constructed) be deemed to be the double line of tramway to be constructed by the Corporation under the provisions of section 28 (Mutual arrangements between the company and the Corporation of Blackpool) of the Blackpool St. Anne's and Lytham Tramways Act 1900 and so soon as Tramway No. 1 and the Lytham Road Improvement shall have been constructed that section shall with the necessary modifications apply as if such double line of tramway had been constructed and the bridge and approaches therein referred to had been widened and straightened under and in accordance with the provisions of that section :

Provisions as to Blackpool St. Anne's and Lytham tramways.

Provided that the Blackpool St. Anne's and Lytham Tramways Company Limited shall not as regards the works of widening straightening and improvement of the portion of Lytham Road and the approaches thereto by this Act authorised be called upon to make any greater contribution towards the cost of such works than they would have been liable to make if those works had

A.D. 1905. — been carried out to the extent and in manner referred to in the said section 28 of the Blackpool St. Anne's and Lytham Tramways Act 1900.

Confirmation of agreement with tramway company.

18. The agreement made the eighth day of March one thousand nine hundred and five between the Corporation of the one part and the Blackpool St. Anne's and Lytham Tramways Company Limited of the other part set forth in the Third Schedule to this Act is hereby confirmed and made binding on the parties thereto respectively.

PART IV.

LANDS AND GENERAL PROVISIONS.

Power to acquire lands.

19. Subject to the provisions of this Act and for the purposes of the Lytham Road Improvement and other the purposes of this Act (including the providing of space for the erection of buildings adjoining or near to any street) the Corporation may enter on take appropriate and use all or any of the lands delineated on the deposited plans and described in the deposited books of reference.

Limiting time for compulsory purchase of lands.

20. The powers of the Corporation for the compulsory purchase of lands under this Act shall cease after the expiration of five years from the passing of this Act.

Power to purchase additional lands by agreement.

21. The Corporation in addition to any other lands which they are by this Act authorised to acquire may by agreement purchase take on lease acquire and hold for the purposes of this Act any lands not exceeding in the whole five acres Provided that the Corporation shall not create or permit the creation or continuance of any nuisance on any such lands.

Acquisition of lands and well on foreshore and appropriation thereof with power to enter into agreements.

22.—(1) So soon as the Corporation shall have acquired the lands on the foreshore numbered 26 and 27 on the deposited plans or so much thereof as may be considered by the Corporation necessary for the purpose or have otherwise agreed with the owner thereof the Corporation may remove and take up the sea-water well and apparatus and pipes therein and may appropriate and use such lands for the purpose of completing the promenade or parade Work No. 5 authorised by the Act of 1899.

(2) The Corporation may enter into and carry into effect agreements with the owner of the said well apparatus and pipes for the removal of the same and for the reinstatement and laying down of the necessary well apparatus and pipes in the same or in some more suitable position.

23. The Corporation shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Corporation shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals. If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Corporation and the amount of such costs and charges shall be a debt due from the Corporation to the Crown and shall be recoverable as a Crown debt or summarily.

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Works below
high-water
mark not to
be commen-
ced without
consent of
Board of
Trade.

24. Section 29 (Corporation may use for purposes of Acts &c. lands now belonging to them) of the Act of 1901 shall extend and apply to the appropriation and use by the Corporation of the lands therein referred to and any other lands acquired or to be acquired by the Corporation under any general or local Act or Provisional Order confirmed by Parliament for any purpose (other than those expressly mentioned in and excepted by the said section) for which the Corporation are for the time being entitled to hold and use lands under any general or local Act or under any Provisional Order confirmed by Parliament.

Amendment
of Act of
1901 as to
use of lands.

25. The following sections of the Act of 1893 and the Act of 1901 shall so far as they are applicable for the purpose extend and apply with the necessary modifications to and in relation to this Act and be incorporated with and form part of this Act (that is to say):—

Incorpora-
tion of sec-
tions from
Acts of 1893
and 1901.

The Act of 1893.

Section 114 Correction of errors omissions &c.

Section 117 Power to take easements &c. by agreement.

Section 119 Consideration for such acquisition.

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The Act of 1901.

Section 26 Owners may be required to sell parts only of certain lands and buildings :

Provided that the said section 26 shall for the purposes of such incorporation apply in respect of the houses or other buildings or manufactories described in the Second Schedule to this Act.

Section 153 of Public Health Act 1875 to apply to alteration of water mains.

26. Notwithstanding anything in this Act contained the Corporation shall not raise sink or otherwise alter the situation of any water pipes mains or apparatus laid in or under any street except in accordance with the provisions of section 153 (Power to require gas and water pipes to be moved) of the Public Health Act 1875 and that section shall apply as if the construction of the Lytham Road Improvement were a purpose of the Public Health Act 1875.

For protection of Postmaster-General.

27.—(A) Notwithstanding anything in this Act contained if any of the works authorised to be executed by this Act involves or is likely to involve any alteration of any telegraphic line belonging to or used by the Postmaster-General the provisions of section seven of the Telegraph Act 1878 shall apply (instead of the provisions of section thirty of the Tramways Act 1870) to any such alteration.

(B) In the event of any tramways of the Corporation being worked by electricity the following provisions shall have effect:—

(1) The Corporation shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by His Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference which arises between the Postmaster-General and the Corporation as to compliance with this subsection shall be determined by arbitration :

(2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Corporation of their electric lines and works or by the

working of the undertaking of the Corporation the Corporation shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :

- (3) Before any electric line is laid down or any act or work for working any tramway of the Corporation by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Corporation or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Corporation and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work. Any difference which arises between the Postmaster-General and the Corporation as to any requirement so made shall be determined by arbitration :
- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the Corporation is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the Corporation's works or to the working of their undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated by the Corporation enter any of the Corporation's works for the purpose of inspecting the Corporation's plant and the working of the same and the Corporation shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Corporation pursuant to the Board of Trade regulations :
- (5) In the event of any contravention of or wilful non-compliance with this section by the Corporation or their agents the Corporation shall be liable to a fine

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not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :

- (6) Provided that nothing in this section shall subject the Corporation or their agents to a fine under this section if they satisfy the court having cognisance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :
- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :
- (8) For the purposes of this section and subject as therein provided sections two ten eleven and twelve of the Telegraph Act 1878 shall be deemed to be incorporated with this Act :
- (9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882 :
- (10) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections thirty to thirty-two both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Corporation or their agents were a company within the meaning of that Act :
- (11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed

against the Corporation by indictment action or otherwise in relation to any of the matters aforesaid : A.D. 1905.

- (12) In this section the expression the "Corporation" includes their lessees and any person owning working or running carriages on any of the tramways of the Corporation.

PART V.

SEA WATER.

28. From and after the passing of this Act the limits for the supply of sea water by the Corporation shall be the borough and the parish of Bispham. Limits of supply.

29.—(1) The terms and conditions upon and subject to which the Corporation may supply sea water under the powers of the Act of 1873 and this Act shall be such as the council shall prescribe. Terms and conditions of supply.

(2) If the charge for the supply of water is made according to the annual value of the house or building supplied the charge shall not exceed ten pounds per centum of the rateable value of such house or building and if the charge is made according to measure the charge shall not exceed the rate prescribed by section 57 (Rates at which water is to be supplied) of the Act of 1873 Any water charges under this Act may be recovered by the Corporation in accordance with section 69 (Recovery of charges for water) of the Act of 1873.

30.—(1) The Corporation shall keep the accounts in respect of their sea-water undertaking separate from their other accounts distinguishing therein capital from revenue and shall apply all money received by them on account of revenue in respect of their sea-water undertaking in the manner and in the order following (that is to say) :— Application of revenue of sea-water undertaking and as to deficiency.

First In payment of the working and establishment expenses and cost of maintenance of the undertaking ;

Secondly In payment of the interest on moneys borrowed and to be borrowed by the Corporation for the purposes of the undertaking ;

Thirdly In providing the requisite instalments or sinking fund payments in respect of moneys borrowed and to be borrowed for the purposes of the undertaking ;

Fourthly In extending and improving (if the Corporation think fit) any works for the purposes of the undertaking ;

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Fifthly In providing a reserve fund (if the Corporation think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation not exceeding a sum equal to one-fifth of the aggregate capital expenditure for the time being by the Corporation upon the undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Corporation from the undertaking or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of the undertaking or for payment of the cost of renewing any part of the undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum :

And the Corporation shall carry to the district fund so much of any balance remaining in any year of the income of the undertaking (including the interest on the reserve fund when such fund amounts to the prescribed maximum) as may in the opinion of the Corporation not be required for carrying on the undertaking and paying the current expenses connected therewith.

(2) Any deficiency in the revenue of the undertaking shall be made good and shall be defrayed out of the district fund and general district rate.

PART VI.

FINANCIAL AND MISCELLANEOUS PROVISIONS.

Power to
borrow.

31.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes herein-after mentioned any sum or sums of money not exceeding the respective amounts following:—

(A) For the purchase of land for and execution of the Lytham Road Improvement by this Act authorised the sum of thirteen thousand pounds;

(B) For the purposes of their sea-water undertaking such sum or sums as the Local Government Board may from time to time sanction; A.D. 1905.
—

(c) For paying the costs of this Act as herein-after provided the sum requisite for that purpose.

(2) In addition to the moneys which the Corporation are by this section authorised to borrow they may borrow such further sums of money for or in connexion with the Lytham Road Improvement as the Local Government Board may sanction.

(3) In order to provide for the repayment of moneys borrowed under this section and the payment of interest thereon the several revenues of the Corporation are hereby made specially liable and such moneys are hereby primarily chargeable accordingly (that is to say) :—

As regards purpose (A) herein-before mentioned and other the purposes of the Lytham Road Improvement the district fund and general district rate;

As regards purpose (B) herein-before mentioned the revenue arising from the sea-water undertaking of the Corporation;

As regards purpose (c) herein-before mentioned the borough fund and borough rate.

32. The Corporation shall pay off all moneys borrowed by them under this Act within the respective periods (in this Act referred to as “the prescribed periods”) following (that is to say) :— Period for
repayment.

As to moneys borrowed for the purpose (A) in the last preceding section of this Act mentioned within fifty years from the date or dates of borrowing the same;

As to moneys borrowed for the purpose (c) in the last preceding section of this Act mentioned within five years from the passing of this Act;

As to moneys borrowed with the sanction of the Local Government Board within the periods sanctioned by that Board.

33. The powers of borrowing money given by this Act shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the Corporation may borrow under that Act any sums which they may borrow under this Act shall not be reckoned. Certain
regulations
of Public
Health Act
not to apply.

A.D. 1905.

Interest
fund.

34.—(1) For payment of interest on the principal moneys there shall be established and formed a fund called “the interest fund.”

(2) In each year the Corporation shall pay into the interest fund a sum or sums equal to the aggregate amount of interest payable in that year on the principal moneys.

(3) The amount of such sum or sums in the case of principal moneys in respect of which provision for repayment is made by the payment of equal annual instalments of principal or of principal and interest combined shall be the amount provided by the bond or mortgage creating the charge and in the case of principal moneys in respect of which provision for repayment is made by means of a sinking fund shall be the amount ascertained to be required in that behalf by apportionment of the aggregate amount of interest payable on such last-mentioned principal moneys among the several revenues of the Corporation according to the respective amounts of those principal moneys the interest whereon is properly payable out of such revenues respectively.

Application
of interest
fund.

35. The Corporation shall from time to time apply the interest fund in paying the interest on the principal moneys.

Account of
interest fund.

36. As parts of the general account of the interest fund the Corporation shall keep separate accounts distinguishing and showing in relation to each undertaking or purpose for or in respect of which any of the principal moneys are borrowed by them all moneys paid into the interest fund from the revenues of the Corporation in respect of the interest on the several amounts of the principal moneys chargeable to that undertaking or purpose.

Method of
repayment of
principal
moneys.

37.—(1) The Corporation shall provide for the repayment of the principal moneys or any of them within the periods sanctioned for the repayment thereof (herein-after called “the prescribed periods”) either by the payment of equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of these methods or partly by another or others of them.

(2) In case the Corporation decide to repay any of the principal moneys by means of a sinking fund they shall each year throughout the prescribed periods respectively pay to such fund a sum or sums equal to the aggregate amount of all sums payable in that year for the purpose of providing within the prescribed periods respectively sums equal in amount to the

respective amounts of the principal moneys for the repayment of which the fund is established. A.D. 1905.

(3) The yearly sums to be paid into the fund in respect of each amount of the principal moneys for the repayment of which the fund is established shall be either—

(A) The equal annual sum which if accumulated at compound interest at a rate not exceeding three per centum per annum would be sufficient after payment of all expenses to repay that amount in the prescribed period and accumulations of the said equal annual sums at compound interest at the rate per centum on which the said equal annual sum is calculated ; or

(B) The equal annual sum which if continued throughout the prescribed period would be sufficient without accumulations to repay that amount within the prescribed period :

The said yearly payments in respect of each amount of the principal moneys shall be continued throughout the prescribed period :

Nothing in this subsection (3) contained shall affect the scheme made by the Corporation on the fourth day of February one thousand nine hundred and two for fixing equated periods for discharge of loans and confirmed by the Local Government Board by order dated the eighteenth day of March one thousand nine hundred and two.

(4) If it appear to the Local Government Board (in this Part of this Act referred to as "the Board") at any time that the said several yearly sum or sums as aforesaid or any of them are insufficient to provide within the prescribed periods sums equal in amount to the amount of the principal moneys in respect of which such yearly sum or sums respectively are paid the amount of such yearly sum or sums shall be increased to such extent as the Board may determine and the Corporation with the consent of the Board may at any time reduce such yearly sum or sums either temporarily or permanently in any case in which it appears to the Board that such yearly sum or sums would if maintained be more than sufficient to provide within the prescribed period a sum equal in amount to the amount of the principal moneys in respect of which such yearly sum or sums are required to be paid and if the amount paid into the sinking fund at any time in respect of any particular amount of the principal moneys is in

A.D. 1905. — the opinion of the Board sufficient with the accumulations to arise thereon (if any) to provide within the prescribed period a sum equal in amount to the amount of such principal moneys the Corporation with the consent of the Board may discontinue the payment of the yearly sum or sums to the sinking fund in respect of that amount of the principal moneys.

(5) All moneys which at the passing of this Act are standing to the credit of any sinking fund in respect of principal moneys and not applied in repayment thereof shall be transferred to the sinking fund established under this Act and the sums so transferred shall be taken into account in calculating the future payments to be made to the sinking fund under this section.

(6) All provisions subsisting at the passing of this Act prescribing the method by which any of the principal moneys shall be repaid shall be as regards the said moneys repealed.

Payment of
sale money
&c. to sink-
ing fund.

38. Unless the Board otherwise direct the Corporation shall pay into the sinking fund and then shall carry to the proper separate account forming part of the general account of the sinking fund all such money being capital or in the nature of capital and not being wholly or in part otherwise appropriated or required to be otherwise applied as shall from time to time arise from any sale lease or other disposition of land or other property of the Corporation in respect of or for which any of the principal moneys have been borrowed and as shall from time to time arise from any other source.

Application
of sinking
fund.

39. The Corporation may at any time apply the whole or any part of the sinking fund as follows (that is to say):—

(1) In or towards the discharge of the principal moneys or any of them for the repayment of which the fund is established provided that the yearly sums to be paid to the fund shall not be affected by such application:

(2) Where the Corporation are authorised by any statutory borrowing power to raise money for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said money either wholly or partially by using for such purpose any money for the time being forming part of the sinking fund and moneys so raised shall for the purposes of this Act be deemed to be moneys borrowed under a statutory

borrowing power Provided that when exercising this power the Corporation shall— A.D. 1905.

(A) Withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the user of moneys from such sinking fund ;

(B) Credit such account or accounts in the sinking fund as the Corporation may determine with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of the sinking fund under subsection (1) of this section ;

(c) Debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal moneys equal to the sum withdrawn from the sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of this Part of this Act as to repayment and re-borrowing shall apply thereto accordingly :

- (3) When any of the principal moneys are discharged by the application of any part of the sinking fund the principal moneys so discharged shall be deemed to be in respect of such one or more of the statutory borrowing powers under which the principal moneys for the repayment of which the sinking fund is established were borrowed and if in respect of more than one in such proportions as the Corporation shall determine Provided that the amount of principal moneys deemed to be discharged in respect of any statutory borrowing power shall not exceed the amount of the contributions paid into the sinking fund in respect of that borrowing power and the accumulations (if any) thereon.

40. Pending or in default of any such application of the sinking fund as aforesaid the Corporation shall invest the same in any statutory security and the dividends income and annual proceeds thereof may be applied towards paying the yearly sums Investment of sinking fund.

A.D. 1905. — required to be paid to the sinking fund under the the section of this Act the marginal note whereof is "Method of repayment of principal moneys."

Account of sinking fund. 41.—(1) As part of the general account of the sinking fund the Corporation shall keep—

(A) An account showing the securities on which all sums paid into the sinking fund are from time to time invested; and

(B) Separate accounts relative to each undertaking or purpose for or in respect of which any principal moneys for the repayment of which the sinking fund is established were borrowed; and

(C) Separate accounts relative to such last-mentioned principal moneys in respect of each statutory borrowing power so exercised.

(2) Those separate accounts shall distinguish and show—

(D) The amounts of principal moneys outstanding for the time being chargeable to each undertaking or purpose and respectively attributable to the exercise of the several statutory borrowing powers if more than one relating to that undertaking or purpose; and

(E) The several amounts of principal moneys discharged by application of the sinking fund.

(3) Those separate accounts shall further distinguish and show in relation to each undertaking or purpose—

(F) All money being capital or in the nature of capital paid into the sinking fund and in the judgment of the Corporation properly attributable to that undertaking or purpose; and

(G) All money and securities transferred to the sinking fund as having formed part of any other sinking fund; and

(H) All money paid into the sinking fund as contributions from the revenues of the Corporation in respect of the discharge of those several amounts of principal moneys.

Payments to interest and sinking funds how to be provided.

42.—(1) The yearly sum or sums to be provided under the provisions of this Part of this Act shall be provided by contributions from the several revenues of the Corporation (if any)

A.D. 1905.
 specially made liable to provide the same by or under any statutory borrowing power or by any resolution of the Corporation having reference to the respective borrowing powers and if as regards any statutory borrowing power there is no such specific liability then from the several revenues out of which the respective contributions would be properly payable and in default thereof or subject thereto out of the borough fund and borough rate or out of the district fund and general district rate as the Corporation having regard to the provisions of this Act and the objects for which the statutory borrowing power was exercised may consider equitable.

(2) The Corporation shall from time to time in order to raise the amounts of the several contributions as aforesaid out of their several revenues do all such acts exercise all such powers collect all such moneys and make and levy all such rates as they lawfully can or ought to do exercise collect make and levy for the purpose of or in relation to the respective statutory borrowing powers in exercise whereof the several principal moneys are raised.

43. Subject to the provisions of the Act of 1901 as regards the form of mortgage and transfer of mortgage sections 236 (Form of mortgage) 237 (Register of mortgages) 238 (Transfer of mortgages) and 239 (Receiver may be appointed in certain cases) of the Public Health Act 1875 shall apply with the necessary modifications to all mortgages granted by the Corporation.
 Incorporation of certain sections of Public Health Act 1875.

44. For the purposes of any contribution or account under this Part of this Act the Corporation if they think fit having regard to all the circumstances of the case and subject to the terms on which any principal moneys were borrowed may from time to time by resolution with the approval of the Local Government Board determine and declare on which of the Corporation revenues any of such principal moneys is or shall be deemed to be primarily or collaterally charged or determine and declare that any such principal moneys and the interest thereon shall be apportioned as regards the charge thereof between or among any of the Corporation revenues and every such determination and declaration shall be effectual to all intents.
 Determination as to charge of moneys.

45. The Corporation shall except as herein-after provided have power to re-borrow for the purposes of paying off any principal moneys which have not been repaid and are intended to be forthwith repaid or in respect of any moneys which have been repaid by the temporary application of funds at the disposal of the Corporation within twelve months before the re-borrowing
 As to re-borrowing.

A.D. 1905. — and which at the time of the repayment it was intended to re-borrow Provided that the Corporation shall not have power to re-borrow in respect of any principal moneys repaid by instalments or annual payments or discharged by means of the sinking fund or out of moneys derived from the sale of land or out of any capital moneys properly applicable to the purpose of such repayment other than moneys borrowed for that purpose Provided also that any principal moneys re-borrowed shall be deemed to form the same loan as the money in respect of the repayment of which the re-borrowing has been made and shall be repaid within the prescribed period.

Application of money borrowed.

46. All principal moneys borrowed by the Corporation shall be applied only to the purposes for which they are authorised to be borrowed and to which capital is properly applicable Provided that moneys which may have been borrowed in excess of the amount required shall be paid into the sinking fund or shall be applied in such manner as the Corporation with the approval of the Board determine.

Protection of lenders from inquiry.

47. A person lending any principal moneys to the Corporation shall not be bound to inquire as to the observance by the Corporation of any of the provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

Corporation not to regard trusts.

48. The Corporation shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Corporation shall be sufficient discharge to the Corporation in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Corporation have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register and the Corporation shall not be bound to see to the application of the moneys paid on any such receipt or be answerable or accountable for any loss misapplication or non-application of any of such moneys.

Saving for power to sell lands &c.

49.—(1) Nothing in this Part of this Act shall affect any power or duty of the Corporation to sell lease or otherwise dispose of any land or property of the Corporation or to apply any purchase money or other money arising thereby in discharge of

any charge on that land or property or the revenues thereof (other than the charge of principal moneys created under this Act) or affect any claim of any person under such first-mentioned charge.

(2) That land or property shall in the hands of the purchaser or other person taking the same under the sale lease or other disposition be by virtue of this Act absolutely freed from the charge of principal moneys created under this Act and he shall not be concerned to see to the application of the purchase money or other money or be answerable for any loss or misapplication thereof.

50. Nothing in this Act shall take away or prejudicially affect any of the rights remedies or priorities of the holders of Blackpool Corporation debenture stock issued by the Corporation prior to the passing of this Act.

Saving for
Blackpool
debenture
stock.

51. The Corporation shall furnish all such information and returns (if any) to the Board with regard to the exercise of the powers contained in this Part of this Act as the Board shall from time to time require. And in particular the treasurer of the borough shall within forty-two days after the expiration of each year during which any sum is required to be set apart for the sinking fund or any instalment is required to be paid in respect of any of the principal moneys transmit to the Board a return in such form as may be prescribed by the Board and verified by statutory declaration if so required by them showing the amount which has been paid as an instalment or invested for the purpose of such sinking fund during the year preceding the making of such return and the description of the securities upon which the same has been invested and also showing the purposes to which any portion of the moneys invested for the sinking fund and the interest thereof have been applied during the same period and the total amount remaining invested at the end of the year together with such further information (if any) as the Board shall require and in the event of any wilful default in making such return the treasurer shall be liable to a penalty of not exceeding twenty pounds which shall be paid to the Board and shall be recoverable by the Board in the same manner as penalties recoverable under the Public Health Act 1875 in a summary manner may be recovered by parties aggrieved within the meaning of that Act.

Information
and return
to Local
Government
Board.

If it appear to the Board by such return or otherwise that the Corporation have failed to pay any instalment or to set apart the sum required by this Act for the sinking fund or have applied any portion of the moneys set apart for that fund or any interest

A.D. 1905. — thereof to any purposes other than those authorised by this Act the Board may by order direct that a sum not exceeding double the amount in respect of which such default shall have been made shall be set apart and invested as part of the sinking fund and such order shall be enforceable by writ of Mandamus to be obtained by the Board out of the High Court.

Consolidation of equated loans.

52. The several loans referred to collectively under the respective headings in the scheme made by the Corporation on the fourth day of February one thousand nine hundred and two for fixing equated periods for the discharge of loans and confirmed by the Local Government Board by order dated the eighteenth day of March one thousand nine hundred and two may with the approval of the Local Government Board be consolidated and dealt with in the accounts of the Corporation as if the aggregate amount of the several loans relative to each heading set forth in the summary in the schedule to the said order were one loan raised under one statutory borrowing power and if approved by the Local Government Board separate consolidations of all or any of the loans included under the several headings in the schedule to the scheme may be made.

Scheme for fixing equated periods and consolidating loans.

53.—(1) The Corporation may at any time make a scheme for prescribing one or more uniform periods within which all or any loans already contracted or to be contracted by them under any statutory borrowing power shall be discharged and such scheme may provide for the consolidation of any such loans into one loan as if such loans were one loan raised under one statutory borrowing power and may extend or vary the periods within which such loans shall be discharged and may make provision in regard to all matters incidental thereto.

(2) No scheme made by the Corporation under this section shall have any force or effect until confirmed by the Local Government Board who may by order confirm the same with or without modifications and when so confirmed the scheme shall notwithstanding any enactment order or sanction to the contrary have full force and effect and such scheme shall be deemed to be within the powers of this Act Provided that nothing in any scheme made under this section shall prejudice or affect the security rights and remedies of any mortgagee under any mortgage existing at the time of the confirmation of the scheme or of the holder of any Corporation stock existing at that time except with the consent of such mortgagee or holder.

(3) Section 69 (Scheme for fixing equated periods) of the Act of 1901 is hereby repealed. Provided that such repeal shall not affect any scheme made and confirmed under the said section and in force at the passing of this Act. A.D. 1905.

(4) Any scheme made and confirmed under the Act of 1901 or this Act may be altered extended amended or annulled by any other scheme made and confirmed under this Act.

54. Any expenses of the execution by the Corporation of this Act with respect to which no other provision is made may be defrayed by the Corporation out of the borough fund and rate or the district fund and general district rate as the Corporation may in their discretion having regard to the object of the expenditure deem just. Expenses of execution of Act.

55. When any expenditure is incurred or any money is received for purposes common to two or more accounts the Corporation may apportion the same between those accounts in such manner as they deem equitable. Apportionment of moneys.

56. The Corporation may apply any moneys borrowed or to be borrowed by them for tramway purposes under the Act of 1901 for or in connexion with the construction of the tramways by this Act authorised. Power to apply moneys borrowed under Act of 1901 for tramway purposes.

57. The Corporation may from time to time advance by way of loan to the Fylde Preston and Garstang Hospital Committee or to any joint board (of which the Corporation are a constituent authority) constituted under the Public Health Act 1875 (each of whom is in this Act referred to as "the borrowing authority") such sum or sums of money as the borrowing authority is for the time being by law authorised to borrow or re-borrow and is desirous to borrow from the Corporation upon the security of any rates or funds which the borrowing authority is authorised to charge for the repayment of the money borrowed and the provisions of section 63 (Power to Corporation to lend to school board &c.) of the Act of 1901 shall extend and apply with the necessary modification to and in respect to any moneys advanced by the Corporation to the borrowing authority referred to in this section. Power to lend to hospital board.

58. In calculating the amount which the Corporation are entitled to borrow under the Public Health Act 1875 the amounts already borrowed by the Corporation in respect of their electric lighting undertaking and their sea-water undertaking as well as Moneys borrowed for electric lighting and sea-water undertakings not to be taken into account

A.D. 1905. the amounts which may hereafter be borrowed by them in respect of those undertakings shall not be taken into account.

under Public Health Act.

As to supply of electrical energy in case of a separate supply.

59. Notwithstanding anything contained in the Electric Lighting Acts 1882 and 1888 a person shall not be entitled to demand from the Corporation a supply of electrical energy to premises having a separate supply unless such person shall have previously agreed to pay to the Corporation a minimum annual sum as will give to the Corporation a reasonable return on the capital expenditure and other standing charges incurred by the Corporation to meet the possible maximum demand of such person. In case the Corporation and the person demanding such supply of electrical energy shall fail to agree on the amount of such minimum annual sum to be paid by such person the amount of such minimum annual sum shall be fixed by an arbitrator to be appointed by the Board of Trade.

Assistant overseers and others to give security.

60. All officers appointed or to be appointed by the Corporation to assist in the discharge of the duties of the overseers of the township of Blackpool including any assistant overseer appointed by the Corporation shall give such security for the due performance of their duties as may be required by the Corporation and the district auditor appointed by the Local Government Board shall report thereon annually to the Corporation and such securities shall be deposited with the town clerk and not with the board of guardians. Assistant overseers appointed by the Corporation shall not be required to give security to the guardians of the union under section 61 of the Poor Law Amendment Act 1844.

Incorporation of sections 79 and 80 of Act of 1901.

61. Section 79 (Recovery of penalties &c.) and section 80 (Inquiries by Local Government Board) of the Act of 1901 shall with the necessary modifications extend and apply to and in relation to this Act and be incorporated with and form part of this Act.

Costs of Act.

62. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund and borough rate or out of moneys borrowed under the powers of this Act.

The SCHEDULES referred to in the foregoing Act. A.D. 1905

THE FIRST SCHEDULE.

ACTS and ORDERS relating to the BOROUGH.

Session and Chapter.	Title or Short Title.
16 Vict. c. xxix. -	The Blackpool Improvement Act 1853.
28 & 29 Vict. c. cxxiv. -	The Blackpool Improvement Act 1865.
36 Vict. c. xxvii. -	The Blackpool Sea Water Act 1873.
42 & 43 Vict. c. cxcix. -	The Blackpool Improvement Act 1879.
47 & 48 Vict. c. cxii. -	The Blackpool Corporation Tramways Order 1884.
53 & 54 Vict. c. clxxxix. -	The Blackpool Electric Lighting Order 1890.
56 & 57 Vict. c. lxxxvi. -	The Blackpool Improvement Act 1893.
56 & 57 Vict. c. exciii. -	The Blackpool Corporation Tramways Order 1893.
59 & 60 Vict. c. cxxx. -	The Blackpool Improvement Act 1896.
59 & 60 Vict. c. cxx. -	The Blackpool Corporation Tramways Order 1896.
60 & 61 Vict. c. cli. -	The Blackpool Corporation Tramways Order 1897.
61 & 62 Vict. c. cvi. -	The Blackpool Improvement Act 1898.
62 & 63 Vict. c. clxxxiv. -	The Blackpool Improvement Act 1899.
62 & 63 Vict. c. cclxxiv. -	The Blackpool Corporation Tramways Order 1899.
1 Edw. 7. c. cxxviii. -	The Blackpool Improvement Act 1901.
50 & 51 Vict. c. clxxx. -	The Blackpool Order confirmed by the Local Government Board's Provisional Orders Confirmation (No. 7) Act 1887.
51 & 52 Vict. c. cxxi. -	The Blackpool Order confirmed by the Local Government Board's Provisional Orders Confirmation (No. 7) Act 1888.
53 & 54 Vict. c. lxxxv. -	The Blackpool Order confirmed by the Local Government Board's Provisional Orders Confirmation (No. 7) Act 1890.
54 & 55 Vict. c. ccxi. -	The Blackpool Order confirmed by the Local Government Board's Provisional Orders Confirmation (No. 14) Act 1891.
57 & 58 Vict. c. cxxix. -	The Blackpool Order (No. 2) 1894.
2 Edw. 7. c. lxxxiv. -	The Blackpool Order (No. 1) 1902.
2 Edw. 7. c. lxxxiv. -	The Blackpool Order (No. 2) 1902.
4 Edw. 7. c. clxii. -	The County Borough of Blackpool Order 1904.

THE SECOND SCHEDULE.

DESCRIBING PROPERTIES of which PORTIONS only may be required by the CORPORATION.

Area.	Numbers on deposited Plans.
Borough of Blackpool -	1 2 3 4 5 6 7 8 14 15 16 17 18 19 20 21 22 23 24 26 and 27.

A.D. 1905.

THE THIRD SCHEDULE.

AN AGREEMENT made the eighth day of March one thousand nine hundred and five between the MAYOR ALDERMEN and BURGESSES of the BOROUGH of BLACKPOOL (herein-after called "the Corporation") of the one part and the BLACKPOOL ST. ANNE'S AND LYTHAM TRAMWAYS COMPANY LIMITED (herein-after called "the Company") of the other part.

WHEREAS the Company have applied to the Corporation to grant to the Company certain running powers over the Corporation's tramways system and the Corporation have agreed to grant to the Company running powers over so much only of the Corporation's tramways system as is herein-after mentioned on the terms and conditions herein-after appearing :

Now these presents witness that it is hereby mutually agreed by and between the parties hereto as follows :—

(1) Subject as herein-after provided the Company shall during the continuance of this agreement have the privilege but shall not be under obligation to run their cars along the tramways of the Corporation in Station Road Blackpool between South Shore Railway Station and the westerly end of Station Road Provided always that if and when the Company do so run their cars they may collect and retain the fares payable by the passengers travelling in the Company's cars on the tramways of the Corporation in Station Road and the Company shall pay to the Corporation whether or not the Company shall so run their cars for and in respect of such privilege the annual sum of two hundred and fifty pounds payable by equal quarterly payments on the first day of April the first day of July the first day of October and the first day of January the first of such quarterly payments to be made on the first day of April next Provided always that the Company may as regards the privilege and obligation herein-before in this clause mentioned determine the same by three calendar months previous notice in writing under their common seal to the Corporation expiring on the first day of April in any year during the continuance of this agreement and at the expiration of such notice this clause shall cease to have effect except as to any claim or demand then accrued or accruing in favour of either of the parties hereto against the other of them thereunder and such notice and determination shall be without prejudice to clause 14 of this agreement as to cost of junctions loop lines passing-places and other connexions or communications which clause shall be and continue in full force and virtue notwithstanding such notice and determination Provided always and it is hereby agreed and declared that there shall be no restriction on the Company's service along Station Road in order that if the Company deem it desirable the Company may be at liberty to run a three-minutes service along that road but the absence of

such restriction on any service run by the Company shall not restrict or unduly interfere with the ordinary tramway service of the Corporation from time to time on that road. A.D. 1905.

(2) The Company may and shall during the continuance of this agreement barring accidents and circumstances over which the Company have no control including strikes and breakdowns run through cars at intervals of at least fifteen minutes each from 9 a.m. to 8 p.m. and of thirty minutes each from 8 p.m. to 10 p.m. each way every day (including Sundays) in the six winter months and through cars at intervals of at least seven and a half minutes each from 9 a.m. to 8 p.m. and of fifteen minutes each from 8 p.m. to 10 p.m. each way every day (including Sundays) in the six summer months along the entire tramway route between the southerly end of Lytham Road in the said borough and the northern termination in front of the Central Railway Station in Blackpool of the tramways of the Corporation in Lytham Road in Waterloo Road to Central Drive and in Central Drive to the Central Railway Station over which running powers are hereby granted to the Company and such running shall be in accordance with such time-tables and subject to such regulations as may from time to time be agreed upon between the parties hereto or as shall be settled by arbitration under the general provision for arbitration herein-after contained provided always that the Company shall not permit more than two of their cars to be or remain at one and the same time in Central Drive north of Hull Road in the said borough For the purpose of this clause the expression "the six winter months" shall mean the months of January February March October November and December and the expression "the six summer months" shall mean the months of April May June July August and September The Company may as regards the route herein-before in this clause mentioned determine their obligations and permission under this clause by three calendar months previous notice in writing under their common seal to the Corporation expiring on the first day of April one thousand nine hundred and six and at the expiration of such notice this clause shall cease to have effect except as to any claim or demand then accrued or accruing in favour of either of the parties hereto against the other of them thereunder and such notice and determination shall be without prejudice to clause 14 of this agreement as to cost of junctions loop lines passing-places or other connexions or communications which clause shall be and continue in full force and virtue notwithstanding such notice and determination.

(3) The Company may during the continuance of this agreement run their cars along the entire tramway route in Lytham Road between South Shore Railway Station aforesaid and the westerly end of Rigby Road over which running powers are hereby granted to the Company and such running shall be in accordance with such time-tables and subject to such regulations as may from time to time be agreed upon between the parties hereto or as shall be settled by arbitration under the general provision for arbitration herein-after contained.

A.D. 1905.

(4) With regard to any passenger who may embark upon and alight from the Company's cars on any part of either of the routes mentioned in clauses 2 and 3 of this agreement between the South Shore Railway Station and the Central Railway Station or between the South Shore Railway Station and the westerly end of Rigby Road (without obtaining a through ticket from the Company and without travelling upon some portion of the tramways owned by or leased to the Company) the Company shall collect from such passenger the full fares which such passenger shall become liable to pay for the distance travelled on such last mentioned routes under the scale of fares which shall be from time to time in force and charged by the Corporation on such routes and the Company shall pay over such fares to the Corporation and such sums shall be due and payable monthly on the first day of every month and the Company shall afford the Corporation and their servants all reasonable inspections and facilities for ascertaining the number of passengers carried.

(5) It shall be competent for the Company in respect of the three routes herein-before mentioned namely (a) the route in Station Road and (b) the route in Lytham Road to the westerly end of Rigby Road and (c) the route via Lytham Road Waterloo Road and Central Drive to the Central Railway Station to issue through tickets upon their cars to or from any portion of the tramways owned by or leased to the Company and in respect of all tickets issued to Station Road the Company shall not be required to make any payment to the Corporation other than the said annual sum of two hundred and fifty pounds and any payments under clause 14 of this agreement but in respect of all through tickets issued to or from any portion of the said routes in Lytham Road and Waterloo Road and Central Drive respectively the Company shall pay over to the Corporation the sum of one penny in respect of each such through ticket. All payments in respect of these through tickets shall be due and payable monthly by the Company to the Corporation on the first day of every month and the Company shall afford the Corporation or their servants all reasonable inspections and facilities for ascertaining the number of passengers carried. Provided always that the Company shall not demand or collect from any passenger any sum exceeding one penny in respect of any distance travelled by such passenger either way between the westerly end of Station Road aforesaid and the Dunes Hotel in Lytham Road aforesaid or between South Shore Railway Station and the said Dunes Hotel.

(6) The Company's cars running on the Corporation's tramways shall be constructed and equipped in all respects to the satisfaction of the Corporation it being hereby agreed that the present Company's cars are in fact so constructed and equipped.

(7) The Company shall maintain all cars run by them on the tramways of the Corporation over which running powers are hereby granted together with the equipment thereof and the appliances appertaining thereto or connected therewith in good order and condition (reasonable wear and tear excepted) to the reasonable satisfaction of the Corporation and the

Company shall be liable for all injury which may be caused by such cars to any of the tramways of the Corporation or to the overhead or other equipment or appliances connected with such tramways or to any other property of the Corporation and the Company shall also be liable for all damage to persons or property which shall be caused by any neglect in maintaining the cars of the Company and the equipment thereof and the appliances appertaining thereto or connected therewith in good order and condition. The Corporation may refuse to permit cars which they shall reasonably consider to be in a defective order and condition to enter upon any part of the Corporation's tramways. A.D. 1905.

(8) The Company shall retain and indemnify the Corporation against all liability for accident arising in respect of the running of the Company's cars on the Corporation's tramways both to persons and to property.

(9) As respects the cars of the Company running on the lines of the Corporation in Station Road the Company shall not be entitled to any payment from the Corporation but as respects the route in Lytham Road between the South Shore Railway Station and the westerly end of Rigby Road and the route between such railway station via Lytham Road Waterloo Road and Central Drive and the Central Railway Station the Corporation shall pay or allow to the Company such sum per car mile run by the Company's cars upon the tramways of the Corporation as having regard to all the circumstances of the case shall be annually agreed between the parties hereto or as failing agreement shall be annually determined by the manager for the time being of the Leeds Corporation tramways or in the event of his death unwillingness or inability to act then by the manager for the time being of the Glasgow Corporation tramways which sum shall include a sum not exceeding one penny three farthings per car mile for use maintenance repair and renewal of the car and also a due proportion of the actual wages according to the car miles worked of the Company's drivers and conductors calculated for this purpose on a scale per car mile worked not exceeding the average wages paid by the Corporation on their own tramways to their own drivers and conductors. The said sum shall be due and payable monthly on the first day of every month and the Company shall afford the Corporation and their servants all reasonable inspections and facilities for ascertaining the number of car miles run by the Company's cars upon the said two last-mentioned routes and also the actual wages paid by the Company to their own drivers and conductors. This clause shall be and be deemed to be a submission to arbitration within the Arbitration Act 1889.

(10) The Corporation shall be at liberty if and when they consider it desirable from time to time but shall not be under any obligation to send or run their cars over the tramways owned by or leased to the Company or any of them or any part thereof at such times and in such manner and subject to such regulations and in accordance with such time-tables as shall be agreed upon and generally in all respects mutatis mutandis except as regards clauses one two and eleven hereof on the same terms and conditions

A.D. 1905. — as are herein-before contained with respect to the cars of the Company running on the tramways of the Corporation to the Central Railway Station and the westerly end of Rigby Road and the amount payable in respect of any through ticket over the tramways owned by or leased to the Company together also with all difference as to any of the terms and conditions of such running shall in the event of dispute be settled by arbitration under the general provision for arbitration herein-after contained.

(11) No cars used by the Company in the said borough shall have any advertisement displayed thereon or therein in any position or of any character to which respectively the Corporation shall reasonably object or which they shall reasonably disapprove it being distinctly agreed that the position and character of such advertisements shall as far as practicable be similar to the position and character of any advertisements for the time being in or on the cars of the Corporation but this restriction shall be subject and without prejudice to the obligations of the Company under an agreement as to advertising on the Company's cars dated the thirty-first day of December one thousand nine hundred and four and made between the Company of the one part and Warren Baker of the other part.

(12) The Company shall observe all and singular the provisions for the protection of the Lancashire and Yorkshire and London and North Western Railway Companies contained in any Act of Parliament or Provisional Order affecting the tramways of the Corporation herein referred to or any of them or any part thereof and shall indemnify and save harmless the Corporation from and against any loss costs damages or expenses consequent upon any breach thereof by the Company or any of their servants.

(13) In each case where the Corporation or the Company as the case may be (in this clause respectively called "the operators") run over and use with their cars any tramways belonging to or hitherto used by the other party (in this article and for this purpose only called "the owners") the following provisions shall also have effect:—

(A) The owners shall at their own expense generate transmit and distribute or at the like expense procure to be generated transmitted and distributed all electrical energy required by the cars of the operators upon and over the tramways of the owners but nothing herein contained shall prejudice the rights duties or powers of either of the parties hereto under the agreement made between the Corporation of the first part the Blackpool St. Anne's and Lytham Tramways Company of the second part and the Company of the third part bearing date the fourth day of October one thousand eight hundred and ninety-eight or the agreement made between the Corporation and the Company bearing date the fourteenth day of May one thousand nine hundred and three:

A.D. 1905.

(B) The cars of the operators shall be in charge of and operated by the drivers and conductors of the operators but such drivers and conductors shall be under the superintendence and subject to the control of the owners :

(C) The owners shall maintain their respective tracks and all poles cables wires plant and appliances connected therewith on such of the tramways of the owners as the operators are by this agreement authorised to run over and use in a state of repair and efficiency to the reasonable satisfaction of the operators but nothing herein contained shall prejudice the rights duties or powers of either of the parties hereto under the lease of the seventh day of August one thousand eight hundred and ninety-seven made between the Corporation of the one part and the Blackpool St. Anne's and Lytham Tramways Company of the other part or under the said agreements of the fourth day of October one thousand eight hundred and ninety-eight and the fourteenth day of May one thousand nine hundred and three.

(14) The cost of making and maintaining all necessary junctions loop lines passing-places or other connexions or communications whether electrical or mechanical between tramways of the Corporation and the Company owned by or leased to the Company shall for the purpose of carrying into effect the provisions of this agreement be paid by the Company to the Corporation on demand or the Company may at their option pay to the Corporation during the residue of the term of the said lease of the seventh day of August one thousand eight hundred and ninety-seven as from the completion of the respective works mentioned in this clause an annual sum equal to nine pounds per centum per annum upon such cost In case of difference between the parties hereto as to the amount of such cost such difference shall be settled by arbitration under the general provision for arbitration herein-after contained Clause 22 of the said lease shall apply to the maintenance repair and making good of the roadway of the said junctions loop lines passing-places and other connexions and communications as if such roadway were therein specifically mentioned.

(15) Neither party hereto shall have any claim or demand against the other party hereto for or on account of interruption of traffic or otherwise by reason of either of the parties hereto or any local or road authority widening altering diverting improving or repairing any road whereon any tramway is or shall be laid or by reason of the lawful regulation or prohibition of the passage of any traffic along or across any such road or by reason of repair or renewal from time to time of the rails or permanent way or of the electric or other equipment of any of the tramways herein referred to provided that every such interruption shall be minimised as far as reasonably possible.

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(16) Until after the thirtieth day of June one thousand nine hundred and nine neither of the parties hereto shall without the consent under their common seal of the other party make any application to Parliament or to the Board of Trade or to the Light Railway Commission in relation to running powers or traffic facilities by either of them over any tramway of the other party now made.

(17) In every case in which any difference may arise between the Corporation and the Company touching the true intent and meaning of this agreement or touching anything to be done suffered or omitted in pursuance of this agreement or touching any of the incidents or consequences of this agreement or touching any breach or non-fulfilment or any alleged breach or non-fulfilment of this agreement or touching any liability damages losses costs or expenses by reason of any such breach or non-fulfilment or alleged breach or non-fulfilment or touching any claim or demand relating to any such liability damages losses costs or expenses or otherwise relating to the premises every such difference shall except as in this agreement otherwise expressly provided be referred to and determined by a referee to be appointed by the Board of Trade in manner provided by section 33 of the Tramways Act 1870.

(18) Except as to clause 14 this agreement with respect to cost of junctions loop lines passing-places ~~and other~~ connexions or communications this agreement shall continue in force until the first day of August one thousand nine hundred and nine and thereafter until determined by either of the parties hereto in manner herein-after provided and such clause shall be and continue in full force and virtue notwithstanding such notice and determination.

(19) Subject as herein-after mentioned either of the parties to this agreement may at any time after the thirtieth day of June one thousand nine hundred and nine determine the same by twelve calendar months previous notice in writing under their common seal given to the other of them and expiring on the first day of September in any year But such notice and determination shall be without prejudice to clause 14 of this agreement as to cost of junctions loop lines passing-places and other connexions or communications which clause shall be and continue in full force and virtue notwithstanding such notice and determination.

(20) All notices under this agreement shall be sufficiently served if addressed to and served upon the town clerk of the borough of Blackpool or addressed to and served upon the secretary of the Company as the case may be by delivery of such notice at his office or by forwarding the same to him in a registered letter so addressed.

(21) Subject to clause 16 of this agreement nothing herein contained shall prejudice either party to this agreement in any application by one of them to Parliament or to the Board of Trade or to the Light Railway Commission or any opposition by the other of them to any such application.

[5 EDW. 7.] *Blackpool Improvement Act, 1905.* [Ch. clxxiii.]

(22) Nothing herein contained shall prejudice the right of either party hereto to run their own cars on any tramway owned by or leased to them. A.D. 1905.

In witness whereof the Corporation and the Company have hereunto caused their respective common seals to be affixed the day and year first before written.

The common seal of the mayor aldermen and burgesses of the borough of Blackpool was hereunto affixed by authority of the council of the said borough in the presence of

Seal.

JOSEPH BRODIE Mayor.

T. LOFTOS Town Clerk.

The common seal of the Blackpool St. Anne's and Lytham Tramways Company Limited was hereunto affixed in the presence of

Seal.

THOS. BLANE
THOMAS M. SMITH } Directors.

C. E. RIDING Secretary.

between the
tramways owned by the Corporation and the Company. Printed by EYRE and SPOTTISWOODE,

FOR

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